

**IN THE COURT OF SH. AVTAR SINGH
DISTRICT JUDGE, PATIALA.**

(UID No.PB0086)

CIS No. CA/48/2024

CNR No.PBPT01-000701-2024

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Date of Institution: 19.01.2024

Date of Decision: 27.02.2026

Harpal Singh working as Driver no. P-135 PRTC, Patiala Depot and son of Sh. Balkar Singh, resident of village Hottipur, P.S. Khanauri, District Sangrur.

.....Appellant

VERSUS

1. Pepsu Road Transport Corporation, through its Managing Director, Nabha Road, Patiala.
2. The General Manager, P.R.T.C., Patiala Depot, Patiala.
3. The Additional Managing Director, PRTC, Nabha Road, (Head Office), Patiala.

.....Respondents

Appeal against the judgment and decree dated 13.12.2023 passed by the Court of Sh. Harjot Singh Gill, Civil Judge (Junior Division), Patiala.

Present: Sh. Jasbir Singh Sandhu, Advocate for appellant.
Sh. Arun Attri, Advocate for respondents.

JUDGMENT

1. Appellant-plaintiff Harpal Singh has filed the present appeal against the judgment and decree dated 13.12.2023 passed by the Court of Sh. Harjot Singh Gill, learned Civil Judge (Junior Division), Patiala, vide which, suit of the appellant-plaintiff was dismissed.
2. Brief facts of the case of plaintiff are that the plaintiff joined as driver in PRTC. He was served with a charge sheet memo no.4739 dated 22.09.2017 on the charges that on 15.04.2014 he was on duty with

PRTC Bus no.1356 and had caused an accident while driving the bus rashly and negligently. The plaintiff joined the inquiry proceedings and filed detailed reply to the charge sheet in which he denied all the charges against him. Regular departmental inquiry was ordered to be conducted against the plaintiff. After culmination of inquiry proceedings, report of the inquiry officer was submitted and thereafter, show cause notice dated 18.04.2018 was issued to the plaintiff. Thereafter, defendant no.2 has passed the punishment order no.123 dated 18.05.2018 whereby four annual increments of the plaintiff were stopped with cumulative effect. The plaintiff filed appeal against the said order but same was also dismissed vide order dated 29.03.2023. It has been averred that the defendant Corporation vide its own act and conduct is estopped to issue the charge sheet and to conduct the departmental inquiry in the present case. The defendant Corporation while filing the written statement before the Motor Accident Claims Tribunal, took specific plea that the driver of PRTC bus (plaintiff) was not negligent in causing the alleged accident. Therefore, the defendant Corporation is bound by its stand taken before the Motor Accident Claims Tribunal and later on cannot issue the charge sheet on the allegations of negligent driving. It has been further averred that the onus was on the department to prove the charges against the plaintiff but no eye witness has been examined by the department and there is no evidence at all to prove the charges against the plaintiff. The inquiry report submitted by inquiry officer is based upon no evidence. The charge sheet and inquiry proceedings were initiated after the decision of claim petition and only with a view to recover the compensation amount from the plaintiff. The bus of

PRTC was not insured at the time of accident, which is also serious lapse on the part of the defendant Corporation. Further, the plaintiff has already been acquitted in a criminal case registered against him vide judgment dated 18.07.2018. The charge sheet dated 22.09.2017 issued by defendant no.2; punishment order dated 18.05.2018 passed by defendant no.2 and the appellate order dated 29.03.2023 passed against the plaintiff are illegal, null and void, ultravires, unconstitutional, malafide, arbitrary, against the principles of natural justice and against service rules and regulations and are liable to be set aside. Hence, the present suit.

3. Notice of the suit was given to the defendants. Defendants appeared and contested the suit by filing written statement raising preliminary objections that the suit is not maintainable; that the plaintiff has no cause of action to file the present suit and that the suit is time barred. On merits, it has been pleaded that inquiry was initiated against the plaintiff and reply to the charge sheet given by the plaintiff was found not satisfactory. Thereafter regular inquiry was started by the defendant Corporation. The plaintiff joined the inquiry proceedings and was afforded full opportunity to lead his evidence and participate in the inquiry proceedings. Thereafter, after the completion of inquiry proceedings, show cause notice was served upon the plaintiff. The plaintiff filed reply to the show cause notice and after considering the same, punishment order no.123 dated 18.05.2018 was passed by the General Manager of defendant Corporation vide which four annual increments of the plaintiff were stopped with cumulative effect. The plaintiff filed appeal against the said order but his appeal was also dismissed by the Appellate Authority. While

denying all other averments of the plaint, a prayer for dismissal of the suit has been made.

4. Replication was not filed. From the pleadings of the parties, following issues were framed on 02.02.2023:-

1. Whether the plaintiff is entitled to relief of declaration as prayed for? OPP
2. Whether the plaintiff is entitled to relief of mandatory injunction as prayed for? OPP
3. Whether the present suit is not maintainable? OPD
4. Whether no cause of action has been arisen to the plaintiff for filing the present suit? OPD
5. Whether the suit is time barred one? OPD
6. Whether this Court has no jurisdiction to try and decide the present suit? OPD
7. Relief.

5. In order to prove his case, plaintiff Harpal Singh himself stepped into the witness box as PW1. Plaintiff also examined Surinder Singh, Inspector, PRTC, Legal Section, Head Office, Patiala as PW2, Narinderpal Dass, Conductor, PRTC, Patiala Depot as PW3 and Amarjit Singh, Clerk, PRTC, Patiala Depot, Patiala as PW4. Thereafter, learned counsel for the plaintiff tendered into evidence certain documents and closed the evidence on his behalf.

6. On the other hand, defendants examined Sabar Ali, Senior Assistant/Incharge Administration, PRTC, Patiala as DW1 and thereafter, learned counsel for the defendants closed the evidence on their behalf.

7. After hearing the learned counsel for the parties and appreciating the evidence led on file, learned trial Court dismissed the suit

of the appellant-plaintiff vide impugned judgment and decree dated 13.12.2023.

8. Feeling aggrieved of the impugned judgment and decree, appellant-plaintiff has preferred the present appeal.

9. Notice of the the appeal was issued to the respondents, whereupon Sh. Arun Attri, Advocate put appearance on behalf of respondents and contested the appeal. The record of trial Court has also been requisitioned.

10. I have heard the learned counsel for the parties and have perused the record very minutely.

11. Learned counsel for appellant-plaintiff (hereinafter called as the plaintiff) argued that judgment and decree dated 13.12.2023 is against the law and facts and the same is liable to be set aside. The learned trial Court has failed to give any finding on the main law point involved in the present case as to whether the management is bound by the stand taken before the Motor Accident Claims Tribunal to the effect that its driver/plaintiff is not negligent. He further argued that the punishing authority issued charge sheet to the plaintiff only after passing of the award by the Motor Accident Claims Tribunal and from the perusal of the charge sheet Ex.D1, inquiry report and punishment order, it is clear that the management has relied upon the award of Motor Accident Claims Tribunal. The respondents-defendants have not brought any evidence to corroborate the findings of the Motor Accident Claims Tribunal. The respondents-defendants have taken specific stand in the written statement before the Motor Accident Claims Tribunal, which is Ex.P2 to the effect that driver

was not negligent. Even the award so passed by the Motor Accident Claims Tribunal is not accepted by the respondents. The respondents preferred appeal before the Hon'ble High Court and they took the same plea before the Hon'ble High Court. Copy of grounds of appeal before the Hon'ble High Court is Ex.P4. It has been specifically pleaded that the award passed by the Motor Accident Claims Tribunal is illegal and is liable to be set aside. Learned counsel for the appellant further argued that the accident took place on 15.04.2014 and charge sheet was served upon him on 22.09.2017 after the decision of MACT case and main charge in the charge sheet was regarding rash and negligent driving of appellant-plaintiff. The learned trial Court has ignored that as per provisions of Section 115 of the Indian Evidence Act, the respondents-defendants were barred by the law of estoppel. Learned counsel for the appellant further argued that in the criminal case, the appellant-plaintiff was acquitted by the learned Illaqa Magistrate vide judgment dated 18.07.2018, copy of which is Ex.P3. Learned counsel for the appellant cited authority of Hon'ble Punjab & Haryana High Court in **Partap Singh vs. State of Punjab and others, 2010(1) RSJ 503**, wherein it was held that the Court cannot sit in appeal or to appreciate the evidence in exercise of its power of judicial review in respect of disciplinary proceedings. However, where it is a case of no evidence or legal evidence to establish the charges, the Court can definitely examine the validity and perversity of the inquiry and order passed by the disciplinary authority. Learned counsel for the appellant further cited the authority of Hon'ble Punjab and Haryana High Court in **Kulwant Singh Driver vs. Municipal Corporation, Amritsar and another, 2011(3) R.C.R.**

(Civil) 552, wherein it was held that Rs.500/- per month have been ordered to be deducted from the salary of the driver, whereas the stand has been taken by the Municipal Corporation before the Tribunal that driver was not driving the vehicle rashly and negligently. Once the stand has been taken, then finding of the Tribunal is not sufficient on the basis of which recovery could be effected. Learned counsel for the appellant further cited the authority of Hon'ble Punjab and Haryana High Court in **Pepsu Road Transport Corporation vs. Harvinder Singh and others, RSA no. 2751 of 2013(P&H), decided on 09.09.2013**, wherein Pepsu Road Transport Corporation preferred appeal as the respondent was driving the vehicle rashly and negligently and Pepsu Road Transport Corporation took the plea that driver Harvinder Singh was not driving the vehicle rashly and negligently. It was held that Pepsu Road Transport Corporation cannot be allowed to change its stand. Learned counsel for the appellant argued that the present appeal must be accepted by setting aside the judgment and decree dated 13.12.2023 and suit of appellant-plaintiff be decreed.

12. On the other hand, learned counsel for the respondents-defendants (hereinafter called as the defendants) argued that the findings of the trial Court are based upon sound reasonings. The appellant-plaintiff was driving the vehicle rashly and negligently. Proper proceedings were conducted and punishment order was passed against the appellant-plaintiff after following the principles of natural justice. He argued that this Court cannot interfere in the disciplinary proceedings conducted by the respondents. Moreover, acquittal in the criminal case does not vitiate the findings arrived at during the course of disciplinary proceedings. The

learned trial Court has rightly dismissed the suit of the plaintiff. The present appeal must be dismissed.

13. From the submissions of learned counsel for the parties and from the perusal of the file, the case of the plaintiff was that the plaintiff filed suit seeking relief of declaration that charge sheet dated 22.09.2017 issued by defendant no.2; punishment order dated 18.05.2018 passed by defendant no.2 whereby four annual increments of plaintiff were stopped with cumulative effect and appellate order dated 29.03.2023 passed by defendant no.3 dismissing departmental appeal of plaintiff are illegal, null and void, without jurisdiction, ultravires, unconstitutional, malafide, arbitrary, against the principles of natural justice and against service rules and regulations and are liable to be set aside. In order to prove his case, plaintiff Harpal Singh himself stepped into the witness box as PW1 and tendered into evidence his duly sworn affidavit Ex.PW1/A reiterating the averments as contained in the plaint. Plaintiff also examined PW2 Surinder Singh, Inspector, PRTC, Legal Section, Head Office, Patiala, who brought the summoned record and proved copy of award dated 08.09.2015 as Ex.P1, copy of written statement filed by PRTC in claim case as Ex.P2, copy of judgment of criminal case dated 18.07.2018 as Ex.P3 and copy of grounds of appeal filed by PRTC in the Hon'ble High Court as Ex.P4. Plaintiff further examined PW3 Narinderpal Dass, Conductor, PRTC, Patiala Depot, who tendered into evidence his duly sworn affidavit Ex.PW3/A wherein he supported the case of the plaintiff. He also tendered his Conductor licence as Ex.P5. PW4 Amarjit Singh, Clerk, PRTC, Patiala Depot, Patiala who produced attested copy of inquiry file as Ex.P6. The learned counsel for

plaintiff also tendered copy of punishment order dated 18.05.2018 as Ex.P7, copy of reply to charge sheet as Ex.P8, copy of departmental appeal as Ex.P9 and copy of show cause notice as Ex.P10.

14. On the other hand, the case of the defendant was that the punishment order was passed against the plaintiff after conducting inquiry proceedings. There is no violation of any rules and regulations. The appeal filed by the plaintiff against punishment order was also dismissed by the appellate authority. In order to prove their case, defendants examined Sabar Ali, Senior Assistant/Incharge Administration, PRTC, Patiala as DW1, who tendered into evidence his duly sworn affidavit Ex.DW1/A, reiterating the case of the defendants. He also tendered copy of charge sheet as Ex.D1, copy of order no. 123 dated 18.05.2018 as Ex.D2 and order no.677 dated 29.03.2023 as Ex.D3.

15. The moot question before this Court is whether the punishment order dated 18.05.2018 is illegal, null and void. The allegations against the the plaintiff were that he caused the accident on 15.04.2014 by driving the vehicle rashly and negligently. It is clear that defendants while appearing before the Motor Accident Claims Tribunal, Patiala took the plea that Harpal Singh was not driving the vehicle rashly and negligently. This Court agrees with the authority cited by the learned counsel for the appellant i.e. **Kulwant Singh Driver's case** (supra) wherein the Municipal Corporation ordered to deduct the amount of Rs.500/- per month from the salary of the petitioner. The stand has been taken by the Municipal Corporation, Amritsar before the Motor Accident Claims Tribunal and in the appeal that the accident had not occurred due to rash and negligent

driving of the petitioner. Once Municipal Corporation, Amritsar not satisfied itself with the findings of the Tribunal, then the impugned order to effect recovery could not be passed by relying upon the findings of the Tribunal. This Court also placed reliance upon the authority titled as **Pepsu Road Transport Corporation vs Harvinder Singh (supra)** in which Pepsu Road Transport Corporation preferred the appeal. The allegations against the respondent were that he caused the accident by driving the vehicle rashly and negligently. Before the Tribunal, the stand has been taken by the Pepsu Road Transport Corporation that Harvinder Singh was not driving the vehicle rashly and negligently. In that judgment, it was held that Pepsu Road Transport Corporation cannot be allowed to change its stand. Both these authorities are fully applicable to the facts of the present case.

16. Another question for determination before this Court is whether the Court can interfere in the disciplinary proceedings. The Hon'ble Punjab and Haryana High Court in **Partap Singh's case** (supra) has held that the Court is not to sit as a Court of Appeal or to appreciate the evidence in exercise of its power of judicial review in respect of disciplinary proceedings. However, where it is a case of no evidence or legal evidence to establish the charges, the Court can definitely examine the validity and perversity of the inquiry and order passed by disciplinary authority. In the present case, the respondents relied upon the award passed by the Motor Accident Claims Tribunal, Patiala. In MACT case, the respondents have taken the stand that Harpal Singh was not driving the vehicle rashly and negligently. So, in view of the law laid down in the

abovesaid authorities, this Court is of the view that punishment order is illegal, null and void.

17. In view of above discussion, the present appeal is allowed with costs. The impugned judgment and decree dated 13.12.2023 are set aside and a declaratory decree to the effect that the charge sheet no.4739 dated 22.09.2017 issued by defendant no.2; punishment order no.123 dated 18.05.2018 passed by defendant no.2 whereby four annual increments of the plaintiff were stopped with cumulative effect and appellate order dated 29.03.2023 passed by defendant no.3 dismissing the appeal of plaintiff are illegal, null and void and the plaintiff is entitled to get all the consequential benefits, is passed in favour of the plaintiff and against the defendants with costs. The defendants are directed to release the arrears to the plaintiff within the period of three months from today, failing which they will be liable to pay interest thereon @ 6% per annum from the date of decree till realisation thereof.

Decree sheet be prepared. Trial Court record along with copy of this judgment be returned forthwith and appeal file be consigned to the record room, after due compilation.

Pronounced.
27.02.2026
Jagjit Singh, Stenographer Gr.I

(Avtar Singh)
District Judge, Patiala
(UID no.PB0086)

JAGJEET SINGH	Digitally signed by JAGJEET SINGH Date: 2026.03.07 17:03:28 +0530
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